

HOUSE BILL 485

By Hardaway

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to school attendance.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3004, is amended by adding the following as a new subsection:

(j)

(1) An LEA or public charter school may provide up to four (4) days of the required one hundred eighty (180) days of classroom instruction in subdivision (a)(1) via hybrid learning in the event of dangerous or extreme weather conditions, or an emergency, as determined by the director of schools or the director of the public charter school in accordance with this subsection (j).

(2) An LEA or public charter school that provides hybrid learning pursuant to this subsection (j), shall provide:

(A) Students enrolled in kindergarten access to at least four (4) hours of instruction each day; and

(B) Students enrolled in grades one through twelve (1-12) access to at least six and one-half (6 1/2) hours of instruction each day.

(3) In tracking daily student attendance and compliance with state school attendance and truancy intervention laws, an LEA and public charter school shall implement policies and procedures for the LEA or public charter school to request and receive daily visual, verbal, or written confirmation of student participation in instructional time; determine excused versus unexcused student

absences; and implement interventions to address student absences during remote instruction.

(4) Each LEA and public charter school that provides hybrid learning pursuant to this subsection (j) shall comply with all state and federal laws, rules, and policies.

(5) Each LEA and public charter school shall make services required by a student's individualized education program (IEP) available to the student on days that hybrid learning is provided pursuant to this subsection (j).

(6) If an LEA or public charter school uses the maximum amount of days authorized for hybrid learning pursuant to subdivision (j)(1) in a school year, then the LEA or public charter school may request the commissioner to authorize additional days for hybrid learning in the event of a natural disaster or serious outbreaks of illness affecting or endangering students or staff.

(7) As used in this subsection (j), "hybrid learning" means an instructional day in which some students participate in-person classroom instruction and some students participate in remote classroom instruction.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.